

Delaware County Board Of Zoning Appeals - August 27th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=z3hvaW7WA1c
Publication Date	2026-08-28T00:19:08Z
Target Category	delaware_county

Notice: This report is provided by the [Muncie Policy Memo](#) as a public service. This summary is generated automatically using artificial intelligence from public video transcripts, both of which are prone to error. The report is intended to provide an overview of meeting business and an aid to accessing detailed information from the video recording. When accuracy is critical, please refer to the official video recording or approved minutes.

Delaware Metropolitan Board of Zoning Appeals Meeting Summary

Meeting Date: July 2026

Report Prepared By: Expert Civic Analyst

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** 00:07:09 Presiding officer called to order the regular monthly meeting of the Delaware-Muncie Metropolitan Board of Zoning Appeals.
- **Attendance:**
 - **Members Present:** Matt Billington, Delaney Fri, Steven Hines, Christy Knapp, Leslie Matthew. (Note: 5 members present, establishing a quorum).
 - **Members Absent:** John Hamilton, Richard Ivy.
 - **Presiding Officer:** Identified as the Chair.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** 00:07:21 The meeting opened with the Pledge of Allegiance led by Kylan.
 - **Approval of Minutes:** 00:11:00 The Board reviewed the minutes of the regular monthly meeting. A motion to approve was made and seconded, resulting in 4 yeses and 1 abstention (Knapp). **Disposition:** Approved by Roll Call Vote (4-0-1).
-

4. Substantive Business & Board Action

Continuances & Withdrawals (Announcements)

- 00:11:43 The Chair announced several cases continued or removed from the agenda:
 - **BZA 56-26:** Tara Hazley / Teratime Properties LLC (Continued to Sept 24, 2026, at 6:00 PM).
 - **BZA 57-26:** Christopher and Kelly Skinner (Continued to Sept 24, 2026, at 6:00 PM).
 - **BZA 65-26:** Leslie Ginder (Changed to a special use; to be heard by Plan Commission on Sept 3, then BZA on Sept 24, 2026).
 - **BZA 66-26:** Edward Bell (Continued to Sept 24, 2026, at 6:00 PM).
 - **BZA 67-26:** Gregory and Jill Stacy (Continued to Sept 24, 2026, at 6:00 PM).
-

Old Business

00:13:22 BZA 49-26: Rhonda A. Jarvis

- **Sponsor / Presenter:** Rhonda A. Jarvis (Applicant).
 - **Deliberation Summary:** Continuation of a public hearing for variances of use to allow farm animals on less than 5 acres, reduced animal setbacks, and a 4-business operation at 8891 North County Road 925 West, Harrison Township. The applicant confirmed that pigs have been permanently removed from the property. The modified request covers 5 goats, 0-20 hens (currently zero, future request), 0-2 roosters, and up to 6 horses. The Board received an email in support from Amber St. Clair.
 - **Item-Specific Public Input:**
 - 00:19:13 **Barry Landrock** (neighbor at 8690) spoke in support, noting no problems with horses/chickens now that pigs are removed.
 - 00:19:54 **David Phillips** spoke in support, confirming pigs are gone and site cleanup is planned.
 - **Action & Vote Disposition:** 00:22:15 Approved as amended (removing pigs, limiting variance to the applicant only and non-transferable) by a roll call vote of **5-0**.
-

New Business

00:23:56 BZA 58-26: 616 West Charles Street LLC

- **Sponsor / Presenter:** David Clevenger (Attorney, Dennis, Wenger & Abrell) and Craig Graybill (GA Architects).
- **Deliberation Summary:** Request for variances from the Muncie comprehensive zoning ordinance to allow a reduced parking requirement (4 spaces instead of standard), reduced front setback, reduced multi-unit apartment width, and reduced recreational/landscaped green space area for a new 4-unit single-bedroom townhome construction at 616 West Charles Street (Old West End Historic District). The Board discussed historic district compatibility and lack of specific architectural designs yet.
- **Item-Specific Public Input:** None (Board noted an email from Brad King regarding historic district concerns).
- **Action & Vote Disposition:** 00:33:23 Approved with conditions: (1) submit building design for review by the Muncie Historic Preservation and Rehabilitation Commission, (2) obtain a certificate of appropriateness, and (3) submit a design plan to the Old West End Neighborhood Association for approval prior to development. **Disposition:** Passed by Roll Call Vote (5-0).

00:36:16 BZA 59-26: 10001 West Charles Street LLC & 10007 West Charles Street LLC

- **Sponsor / Presenter:** David Clevenger (Attorney) and Craig Graybill (Architect).
- **Deliberation Summary:** Request for a use variance to allow a multi-unit apartment building, reduced front setback, and reduced east side setback on a corner lot at 10001 and 1007 West Charles Street. The project involves demolishing a boarded-up house and building 5 single-bedroom townhomes with sufficient parking and compliant landscaping.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** 00:41:33 Approved with conditions mirroring BZA 58-26: staff landscaping plan coordination, review/certificate of appropriateness from the Muncie Historic Preservation and Rehabilitation Commission, and design approval from the neighborhood association. **Disposition:** Passed by Roll Call Vote (5-0).

00:43:09 BZA 60-26: Patrick J. Edington

- **Sponsor / Presenter:** Patrick J. Edington (Applicant).
- **Deliberation Summary:** Request for a variance to allow a home addition (laundry room/pantry) with a reduced side setback on a corner lot in a farm zone at 1400 East County Road 775 South, Monroe Township. The applicant explained that other sides of the house drop off into a flood-prone area or interfere with the septic system.
- **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** 00:46:20 Approved as presented. **Disposition:** Passed by Roll Call Vote (5-0).

00:47:24 BZA 61-26: Cheryl Trump & Shephard Welton

- **Sponsor / Presenter:** Shephard Welton (Applicant).
- **Deliberation Summary:** Request for a use variance to allow 13 hens and 1 rooster in a residential zone at 6609 West Rikken Street, Washington Township. Animals are kept in an enclosed run and are not free-ranged.
- **Item-Specific Public Input:**
 - 00:49:52 Pam Simmons (neighbor) expressed concern regarding the exact property line and whether the chicken coop sits directly on the line due to missing stakes, though she voiced no opposition to the chickens themselves.
- **Action & Vote Disposition:** 00:52:28 Approved with the condition that the variance is for the applicant only and does not transfer with the property. **Disposition:** Passed by Roll Call Vote (5-0).

00:53:26 BZA 62-26: Peggy Rice

- **Sponsor / Presenter:** Kathy Benich (Ashton Land Surveyors) and Katie Rice (Owner).
- **Deliberation Summary:** Request for variances for reduced front and rear setbacks for an existing house and a reduced side setback for an existing garage to facilitate property platting in a farm zone at 6601 and 6609 East Windsor Drive, Perry Township. The owner intends to set aside land ("Sarah's Niche" memorial retreat) for children's educational nature visits.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** 00:58:24 Approved with the condition that the applicant complete and record the platting process. **Disposition:** Passed by Roll Call Vote (5-0).

00:59:26 BZA 63-26: Kathleen Mills, Richard Hawk, & Bernes Pong (Anytime Tree Service)

- **Sponsor / Presenter:** Richard Hawk (Property Owner/Representative) and Bernes Pong (Business Owner).
- **Deliberation Summary:** Request for a use variance to allow the operation of a tree service business (parking trucks, transferring/dumping mulch and wood) in a residential zone at 1000 North Claypool Road, Center Township (9.14 acres). The applicants stated usage is sporadic (3-4 days a month).
- **Item-Specific Public Input:**
 - 00:18:05 John Ray (neighbor owning 12 adjacent acres) spoke in opposition, submitting a petition with 35 signatures from 31 households. He cited severe noise,

shaking houses from heavy machinery/trucks operating 7 days a week, road damage, and blocked access.

- **Action & Vote Disposition:** 02:43:37 A motion to approve with strict weekday/hours conditions failed. **Disposition:** Denied by Roll Call Vote (1-4, with Billington voting yes; Nap, Rich, Hines, Matthew voting no).

01:27:51 BZA 64-26: Wednesday & James Cunningham

- **Sponsor / Presenter:** Wednesday Cunningham (Applicant).
- **Deliberation Summary:** Request for a use variance to allow a dog kennel/pet-sitting operation in a residence zone at 4105 South Hoy Avenue, Center Township. The applicant rescues, fosters, and sits dogs (averaging around 5 personal dogs and occasional boarders).
- **Item-Specific Public Input:**
 - 01:34:08 Laine Coons (customer) spoke in favor, praising the clean, safe outdoor kennel.
 - 01:34:59 Eric Ward (neighbor directly behind) spoke in favor, noting no smell or noise issues.
 - 01:35:58 Arlina Stinton spoke in favor, highlighting the applicant's dedication to animal rescue.
- **Action & Vote Disposition:** 01:36:39 Approved with the condition that the variance is for the applicant only and does not transfer with the property. **Disposition:** Passed by Roll Call Vote (5-0).

01:37:40 BZA 68-26: Affordable Home Matters Indiana LLC

- **Sponsor / Presenter:** Kathy Benich (Surveyor), Jeb Reese (Affordable Home Matters), Brandon Lane (PathStone Corp), and Nate Howard (Muncie Land Bank).
- **Deliberation Summary:** Request for a reduced side setback (from 5 feet to 4 feet) for a proposed new construction dwelling in a residential zone at 620 West Power Street as part of a multi-year Old West End neighborhood redevelopment strategy bringing 34 new homeownership opportunities.
- **Item-Specific Public Input:**
 - 01:44:49 Arlina Stinton asked clarifying questions regarding proximity to her aunt's nearby property (614 West Power St), which surveyors clarified was further away on the opposite side.
- **Action & Vote Disposition:** 01:47:52 Approved as presented. **Disposition:** Passed by Roll Call Vote (5-0).

01:48:39 BZA 69-26: Affordable Home Matters Indiana LLC & Muncie Land Bank

- **Sponsor / Presenter:** Kathy Benich (Surveyor).
- **Deliberation Summary:** Request for a reduced side setback and reduced building width (22.5 feet instead of 24 feet) for a proposed dwelling on a corner lot at 542 South Gary Street and 624 West Power Street.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** 01:51:51 Approved as presented. **Disposition:** Passed by Roll Call Vote (5-0).

01:52:37 BZA 70-26: Muncie Land Bank

- **Sponsor / Presenter:** Kathy Benich (Surveyor) and Jeb Reese (Developer).
- **Deliberation Summary:** Request for a reduced side setback and reduced building width (20 feet wide instead of 24) for a proposed two-story single-family dwelling on a corner lot at 622 West Howard Street. Off-street parking is planned off the alley.
- **Item-Specific Public Input:**
 - 01:56:11 **Matthew Miller** (neighbor to the east) asked clarifying questions regarding setbacks, structure height (confirmed two-story), and parking congestion on the street.
- **Action & Vote Disposition:** 01:59:54 Approved as presented. **Disposition:** Passed by Roll Call Vote (5-0).

5. Open Public Comment / Citizen Forum

Note: Public comments were integrated directly into the specific agenda item hearings rather than a separate general forum.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **Permit & Inspection Stats:** Staff reported 559 permits issued, 955 inspections by Tom Fouch, 80 plan/site reviews, and 76 committee cases through July.
 - **Minutes Format Feedback:** The board briefly discussed the newly streamlined, AI-assisted minutes format, reacting positively to the efficiency.
 - **Comprehensive Zoning Ordinance Update:** Staff distributed a public input form and outlined the timeline. Consultants (*American Structure Point*) are in the "educate phase." Stakeholder meetings are tentatively slated for September 22–23, 2026, with site visits on September 24.
 - **Hearing Officer (HOSA) Discussion:** Staff presented information on activating the Hearing Officer procedure (Article 10 of Plan Commission Rules) to expedite minor, non-controversial BZA cases (like minor setbacks or pre-existing conditions) to

reduce the board's heavy case load (noting Muncie's 70 BZA cases compared to much lower regional numbers). The board discussed notification safeguards, rights of appeal, and requested staff time-saving estimates for further review.

- **Adjournment:** The meeting was officially motioned, seconded, and **Adjourned** at [02:25:39](#).

Muncie Policy Memo Civic Monitoring Automated Pipeline. Report generated on 2026-09-11 13:41:41 using model gemini-3.5-flash-lite.